

vs. *Nicholls*, 6 Beaven, 334 ; *Walker* vs. *Hurst*, 13 Simons, 490.)

These cases were decided under the 8th English Order of 1841, but it is apprehended that the same principle would now apply ; for under the new Order the Court will only direct the appearance to be entered " *if it think fits.*"

Under the English Orders of 1845, answering to the 2nd and 3rd classes of the above 21st Order, the following cases have been decided :—Of the six days which the notice has to run, one day may be Sunday, (*Brewster* vs. *Thorpe*, 11 Jurist, 6.) The Order applies in cases of absent Defendants, being infants, or of unsound mind, (*Anderson* vs. *Stather*, 10 Jurist, 383 ; *Biddulph* vs. *Lord Camoys*, 7 Beaven, 580). As to on whom the service may be made, see *Hitch* vs. *Wells*, 8 Beaven, 576. In case of the death of the Guardian, there must be another application, in the same manner, (*Needham* vs. *Smith*, 6 Beaven, 130.)

The appearance, it will be seen by the foregoing Orders, must in ordinary cases be within fourteen days after service of the Writ. Where the Defendant (an infant or of unsound mind) is abroad, an application to serve the subpœna must be made, under the Order as to absent Defendants, (for which see a subsequent chapter), and after the time for appearance the Plaintiff may proceed as by the above Order prescribed.